

Calendar Line 4

Case Name: *Suchite v. HE&C Tea Pot Inc.*

Case No.: 24CV443643

This is a representative action under the Private Attorneys General Act (“PAGA”). Plaintiff Dori Suchite alleges defendants HE&C Tea Pot Inc., TEA & FOODBY HE&C INC, and Fang Zhang (collectively, “Defendants”) committed various wage and hour violations.

Before the Court is Plaintiff’s motion for leave to file a second amended complaint (“SAC”), which is unopposed. As discussed below, the Court GRANTS Plaintiff’s motion.

I. Background

According to the allegations of the operative First Amended Complaint (“FAC”), Defendants misclassified employees and they failed to: provide compliant meal periods or compensation in lieu thereof; provide compliant rest breaks or compensation in lieu thereof; pay overtime wages; pay minimum wages; timely pay wages during employment; pay all wages due to discharged and quitting employees; furnish accurate itemized wage statements; maintain required records; and indemnify employees for necessary expenditures.

Based on the foregoing, Plaintiff initiated this action on July 23, 2024, with the filing of the Complaint and on March 14, 2025, Plaintiff filed the operative FAC, which asserts a violation of PAGA based on the aforementioned conduct.

II. MOTION FOR LEAVE TO AMEND

Plaintiff moves for leave to file her SAC.

A. Legal Standard

Code of Civil Procedure sections 473, subdivision (a), and 576 provide that the court “may, in the furtherance of justice,” allow a party to amend any pleading. “It is well established that ‘California courts have “a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.” Indeed, “it is a rare case in which ‘a court will be justified in refusing a party leave to amend his [or her] pleading so that he [or she] may properly present his [or her] case.’ ” Thus, absent a showing of prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings will prevail.” (*Board of Trustees v. Superior Court* (2007) 149 Cal.App.4th 1154, 1163 [internal citations omitted].)

“Leave to amend a complaint is thus entrusted to the sound discretion of the trial court. . . .” (*Branick v. Downey Savings & Loan Assn.* (2006) 39 Cal.4th 235, 242 [internal citations omitted].) “[I]t is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048, (*Kittredge*)). The court does not abuse its discretion by denying leave to amend where the facts stated do not constitute a cause of action. (See *IIG Wireless, Inc. v. Yi* (2018) 22 Cal.App.5th 630, 654.)

A motion to amend filed before trial must (1) include a copy of the proposed amended pleading, (2) state what allegations in the previous pleading are proposed to be deleted, and (3) state what allegations are proposed to be added to the previous pleading. (Cal. Rules of Ct., rule 3.1324(a).) The motion must also include a separate declaration that explains “(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier.” (Cal. Rules of Ct., rule 3.1324(b).)

B. Discussion

Defendants failed to response to Plaintiff’s Complaint and FAC. Thus, Plaintiff intends to proceed with the instant matter on a default basis. (Motion, p. 5:7-9.) Accordingly, she moves for leave to file her SAC to assert the violations in separate causes of action as follows: (1) willful misclassification; (2) failure to provide meal periods; (3) failure to provide rest periods; (4) failure to pay overtime wages; (5) failure to pay minimum wages; (6) failure to pay all wage due to discharged and quitting employees; (7) failure to furnish accurate itemized wage statements; (8) failure to maintain required records; (9) failure to reimburse employees for necessary business expenses; and (10) PAGA penalties. The proposed SAC does not allege any new Labor Code violations, thus, it simply seeks to expand Plaintiff’s relief and stem from Defendant’s failure to comply with the Labor Code. (Motion, p. 7:1-7.) Thus, Plaintiff’s contends permitting amendment will not prejudice Defendants.

Here, Plaintiff’s request is procedurally proper and accompanied by the required declarations and facts. (See Cal. Rules of Ct., rule 3.1324(a) & (b).) Moreover, the Court agrees that Defendants will not be prejudice by allowing Plaintiff to file the SAC as the claims will be based on the same violations asserted in the Complaint and FAC. Thus, the Courts finds that permitting amendment is proper.

Based on the foregoing, Plaintiff’s motion for leave to amend is GRANTED.

III. CONCLUSION

Plaintiff’s motion for leave to amend is GRANTED. Plaintiff’s SAC is deemed filed and it must be served within 10 days of this order.

- 00000 -

Calendar Line 5-20

Case Name: *Carolyn McKinney, et al. v. Apple Inc.*

Case No.: 25CV464854

These actions arise from defendant Apple Inc.’s (“Apple” or “Defendant”) alleged intentional interception and recording of communications without consent.

Before the Court is Defendant’s omnibus demurrers to the operative complaints in the following cases, which are opposed:

- (1) *Carolyn McKinney, et al. v. Apple Inc.* (25CV464854) (*McKinney*);
- (2) *Cesar Nicolas Avigliano, et al. v. Apple Inc.* (25CV564406) (*Avigliano*);
- (3) *Thomas Henry Kozik, et al. v. Apple Inc.* (25CV465597) (*Kozik*);
- (4) *Zovik Serengulian, et al. v. Apple Inc.* (25CV466084) (*Serengulian*);
- (5) *Kristin Sue Elbert et al. v. Apple Inc.* (25CV466507) (*Elbert*);
- (6) *Adriana Scott, et al. v. Apple Inc.* (25CV466612) (*Scott*);
- (7) *Patrick Casey, et al. v. Apple Inc.* (25CV466683) (*Casey*);
- (8) *Kimberly Lynn Maldonado, et al. v. Apple Inc.* (25CV46721) (*Maldonado*);
- (9) *Elijah Padgett, et al. v. Apple Inc.* (25CV467837) (*Padgett*);
Peter Khanbegian, et al. v. Apple Inc. (25CV467986) (*Khanbegian*);
- (10) *Nick A. Speights, et al. v. Apple Inc.* (25CV468145) (*Speights*);
- (11) *Sergeo R. Perez, et al. v. Apple Inc.* (25CV468430) (*Perez*);
- (12) *Max Nicholas Ulrich, et al. v. Apple Inc.* (25CV469657) (*Ulrich*);
- (13) *Linette Yvonne Frausto, et al. v. Apple Inc.* (25CV469662) (*Frausto*);
- (14) *Kerrie Lynn Sterner, et al. v. Apple Inc.* (25CV469673) (*Sterner*); and
- (15) *Kenneth Rene Mendoza, et al. v. Apple Inc.* (25CV471234) (*Mendoza*).

As discussed below, Apple’s demurrers are OVERRULED.

I. BACKGROUND

According to the allegations in the operative Complaint in *McKinney*, in 2011 Apple integrated its digital assistant Siri into its devices beginning with the iPhone 4s.⁵ (Complaint, ¶¶ 2, 25-26.) By 2019, Siri was a standard feature on subsequent generations of Apple devices. (*Ibid.*) Initially, Siri could only be activated by manually pressing and holding a button on the device, however, in 2014, Apple released a feature which allows users to activate it by saying “Hey, Siri” (the “Trigger Words”). (Complaint, ¶¶ 3, 29.)

Users found that Siri was activated even when they did not say the designated “Trigger Words.” (Complaint, ¶ 4.) Apple was aware of the design flaw but intentionally continued to sell Siri-enabled devices—and continued to record user interactions with Siri—profiting over two hundred billion dollars between 2014 and 2019 alone. (Complaint, ¶¶ 5, 29-30, 32.)

⁵ The allegations in *McKinney* are identical to those in other actions, with the exception of *Frausto* as a first amended complaint has been filed that action and the numbering is slightly different—however, the substance remains identical.